

(3) Subsections 78 (2) to (12) apply with necessary modifications to an application under subsection (1), and for that purpose,

(a) "tenant" shall be read as "member";

(b) "landlord" shall be read as "non-profit housing co-operative";

(c) "rental unit" shall be read as "member unit";

(d) "tenancy" shall be read as "occupancy";

(e) "rent",

(i) in paragraphs 1 and 2 of subsection 78 (3) and in paragraph 1 of subsection 78 (4) shall be read as "the regular monthly housing charges",

(ii) in subparagraph 4 ii of subsection 78 (4) and in subparagraph 5 i of subsection 78 (7) shall be read as "the regular monthly housing charges and other housing charges, other than any refundable amounts";

(f) subsection 78 (4) shall be read as including the following paragraph:

3.1 If the settlement or order requires the member to pay some or all of the arrears of the regular monthly housing charges, the amount of any additional other housing charges, other than any refundable amounts, arising after the date of the settlement or order;

(g) paragraph 5 of subsection 78 (4) shall be read as follows:

5. The amount of any damage deposit and other refundable amounts;

(h) "section 86" in paragraph 1 of subsection 78 (7) shall be read as "section 94.13";

(h.1) paragraph 2 of subsection 78 (7) shall be read as follows:

2. If the settlement or order requires the member to pay some or all of the arrears of the regular monthly housing charges, the amount of arrears of the regular monthly housing charges and other housing charges, other than any refundable amounts, that arose after the date of the settlement or order;

(i) paragraph 4 and subparagraph 5 iii of subsection 78 (7) shall be read without "not exceeding the amount per cheque that is prescribed as a specified amount exempt from the operation of section 134" at the end;

(j) "rent deposit and interest on the deposit that would be owing to the tenant on

the termination of the tenancy” in subsection 78 (8) shall be read as “damage deposit and other refundable amounts owing to the member on the termination of the member’s occupancy of the member unit”; and

(k) the words and expressions that are the modifications in clauses (a) to (j) shall have the meanings given to them in this Part. 2013, c. 3, s. 31; 2017, c. 13, s. 19 (1-3).

Transition

(4) This section, as it reads immediately before the day subsection 19 (4) of the *Rental Fairness Act, 2017* comes into force, continues to apply if the previous application referred to in paragraph 1 of subsection (1) is made before that day, regardless of whether the resulting settlement or order is mediated or made before, on or after that day. 2017, c. 13, s. 19 (4).

▼ Section Amendments with date in force (d/m/y)

REFUSAL TO GRANT OR POSTPONEMENT OF TERMINATION OF OCCUPANCY AND EVICTION ORDERS

Power of Board to refuse order

94.12 (1) Upon an application under section 94.7, 94.8, 94.10 or 94.11 for an order terminating a member’s occupancy of a member unit and evicting a member, the Board may, despite any other provision of this Act, the *Co-operative Corporations Act*, the by-laws of the co-operative or the occupancy agreement,

(a) refuse to grant the application unless satisfied, having regard to all the circumstances, that it would be unfair to refuse; or

(b) order that the enforcement of the order be postponed for a period of time. 2013, c. 3, s. 31.

Note: On a day to be named by order of the Lieutenant Governor in Council, clause 94.12 (1) (b) of the Act is amended by adding “subject to any prescribed limitations or conditions” at the beginning. (See: 2025, c. 14, Sched. 12, s. 10)

Mandatory review

(2) If a hearing is held, the Board shall not grant the application unless it has reviewed

the circumstances and considered whether or not it should exercise its powers under subsection (1). 2013, c. 3, s. 31.

Circumstances where refusal required

(3) Without restricting the generality of subsection (1), the Board shall refuse to grant the application where satisfied that,

- (a) the reason for the application being brought is that the member has attempted to secure or enforce his or her legal rights;
- (b) the reason for the application being brought is that the member belongs to or participates in a members' association or is attempting to organize such an association; or
- (c) the reason for the application being brought is that the member unit is occupied by children and the occupation by the children does not constitute overcrowding. 2013, c. 3, s. 31.

✓ Section Amendments with date in force (d/m/y)

COMPENSATION FOR CO-OPERATIVE

Compensation, member unit not vacated

94.13 A non-profit housing co-operative is entitled to compensation for the use and occupation of a member unit by a member who does not vacate the member unit after his or her membership and occupancy rights are terminated or expire under the *Co-operative Corporations Act*. 2013, c. 3, s. 31.

✓ Section Amendments with date in force (d/m/y)

Application for arrears, compensation

Arrears

94.14 (1) If a non-profit housing co-operative makes an application under section 94.7 based on a notice of termination for a circumstance described in paragraph 3 of subsection 94.2 (1), the co-operative may at the same time also apply to the Board for

an order for the payment of arrears of the regular monthly housing charges if,

- (a) the member has not paid the regular monthly housing charges lawfully owing by the member; and
- (b) the member is in possession of the member unit. 2013, c. 3, s. 31.

Compensation, overholding member

(2) If a non-profit housing co-operative makes an application under section 94.7, 94.8, 94.10 or 94.11, and the member is in possession of the member unit after the member's membership and occupancy rights have terminated or expired under the *Co-operative Corporations Act*, the co-operative may at the same time also apply to the Board for an order for the payment of compensation for the use and occupation of the member unit after that termination or expiry. 2013, c. 3, s. 31.

Amount of arrears of regular monthly housing charges or compensation

(3) In determining the amount of arrears of the regular monthly housing charges, compensation or both owing in an order for termination of a member's occupancy of a member unit and the payment of arrears of regular monthly housing charges, compensation or both, the Board shall subtract from the amount owing the amount of any damage deposit and other refundable amounts that would be owing to the member on termination. 2013, c. 3, s. 31.

NSF cheque and other charges

(4) On an application by a co-operative under subsection (1), the Board may include the following amounts in determining the total amount owing to the co-operative by a member in respect of a member unit:

1. The amount of NSF cheque charges claimed by the co-operative and charged by financial institutions in respect of cheques tendered to the co-operative by or on behalf of the member, to the extent the co-operative has not been reimbursed for the charges.
2. The amount of unpaid administration charges in respect of the NSF cheques, if claimed by the co-operative.
3. The amount of other unpaid housing charges, other than any refundable

amounts, lawfully owing by the member. 2013, c. 3, s. 31.

Same

(5) On an application by a co-operative under subsection (2), the Board may include the following amounts in determining the total amount owing to the co-operative by a member in respect of a member unit:

1. The amount of NSF cheque charges claimed by the co-operative and charged by financial institutions in respect of cheques tendered to the co-operative by or on behalf of the member, to the extent the co-operative has not been reimbursed for the charges.
2. The amount of unpaid administration charges in respect of the NSF cheques, if claimed by the co-operative. 2013, c. 3, s. 31.

▼ Section Amendments with date in force (d/m/y)

Compensation for damage

94.15 (1) If a non-profit housing co-operative makes an application under section 94.7 or 94.8 based on a notice of termination for a circumstance described in paragraph 6 or 7 of subsection 94.2 (1), the co-operative may at the same time also apply to the Board for an order requiring the member to pay reasonable costs that the co-operative has incurred or will incur for the repair or, where repairing is not reasonable, the replacement of damaged property, if the member is in possession of the member unit and if the member, another occupant of the member unit or a person whom the member permitted in the residential complex,

- (a) wilfully or negligently caused undue damage to the member unit or the residential complex where the notice of termination is based on a circumstance described in paragraph 6 of subsection 94.2 (1); or
- (b) wilfully caused undue damage to the member unit or the residential complex where the notice of termination is based on a circumstance described in paragraph 7 of subsection 94.2 (1). 2013, c. 3, s. 31.

Same

(2) If the Board makes an order requiring payment under subsection (1) and for the

termination of the member's occupancy of the member unit and the eviction of the member, the Board shall set off against the amount required to be paid the amount of any damage deposit and other refundable amounts that would be owing to the member on termination. 2013, c. 3, s. 31.

▼ **Section Amendments with date in force (d/m/y)**

BOARD PROCEEDINGS

Application of ss. 74 to 90

94.16 (1) Subsections 74 (2) to (19) and sections 75, 76, 79 to 81, 84, 85 and 90 apply with necessary modifications to an application to and an order by the Board under this Part and for that purpose,

- (a) "tenant" shall be read as "member";
 - (b) "landlord" shall be read as "non-profit housing co-operative";
 - (c) "rental unit" shall be read as "member unit";
 - (d) "residential complex" shall be read as it is defined in this Part;
 - (e) "tenancy" shall be read as "occupancy" and "a tenancy" shall be read as "an occupancy";
 - (f) "rent" shall be read as "the regular monthly housing charges";
 - (g) "during the period of the tenant's tenancy agreement with the landlord" shall be read as "during the period of the member's membership in the co-operative" and "during the period of the agreement" shall be read as "during that period".
- 2013, c. 3, s. 31; 2017, c. 13, s. 20.

Same

(2) In addition to the necessary modifications in subsection (1),

- (a) subsection 74 (4) shall be read as if "and" at the end of clause (d) were struck out, and with the following additional clause:
 - (d.1) the amount of unpaid housing charges, other than any refundable amounts, payable by the member as allowed by the Board in an application by the co-operative under section 94.14; and

(b) subsection 74 (11) shall be read as including the following paragraph:

4.1 The amount of unpaid housing charges, other than any refundable amounts, payable by the member as allowed by the Board in an application by the co-operative under section 94.14.

(c) a reference in subsection 76 (1) to the landlord or other tenants shall be read as referring to the co-operative or other members or occupants;

(d) section 90 shall be read as follows:

Compensation, misrepresentation of income

90. If a co-operative has given a notice of termination under paragraph 4 of subsection 94.2 (1), the co-operative may, at the same time as it makes an application to the Board to terminate the occupancy of the member unit and evict the member, also apply to the Board for an order for the payment of money the member would have been required to pay if the member had not misrepresented his or her income or that of other members of his or her family, so long as the application is made while the member is in possession of the member unit.

(e) a reference to section 69, 78, 83, 86 or 87 shall be read as referring, respectively, to section 94.7, 94.11, 94.12, 94.13 or 94.14;

(f) a reference to a notice of termination under section 59, 60 or 61, clause 61 (2) (a), section 62, clause 63 (1) (a) or (b) or section 64, 66 or 67 shall be read as referring to a notice of termination for a circumstance described in paragraph 3, 4 or 5 of subsection 94.2 (1), clause 94.4 (4) (a), or paragraph 6, subparagraph 7 i or ii or paragraph 8, 9 or 10 of subsection 94.2 (1), respectively; and

(g) the words and expressions that are the modifications in subsection (1) and in clauses (a) to (f) shall have the meanings given to them in this Part. 2013, c. 3, s. 31.

✓ Section Amendments with date in force (d/m/y)

OFFENCES

Offences

Offences requiring knowledge

94.17 (1) A person is guilty of an offence if the person knowingly,

- (a) harasses, hinders, obstructs or interferes with a member in the exercise of,
 - (i) securing a right or seeking relief under this Act in respect of a matter governed by this Part,
 - (ii) participating in a proceeding under this Act in respect of a matter governed by this Part, or
 - (iii) belonging to or participating in a members' association or attempting to organize a members' association;
- (b) harasses, hinders, obstructs or interferes with a non-profit housing co-operative in the exercise of,
 - (i) securing a right or seeking relief under this Act in respect of a matter governed by this Part, or
 - (ii) participating in a proceeding under this Act in respect of a matter governed by this Part; or
- (c) obtains possession of a member unit improperly by giving a notice under this Act to terminate in bad faith. 2013, c. 3, s. 31.

Other offences

(2) A person is guilty of an offence if the person recovers possession of a member unit in a manner not authorized or permitted under this Act or the *Co-operative Corporations Act*. 2013, c. 3, s. 31.

Attempts

(3) Any person who knowingly attempts to commit any offence referred to in subsection (1) or (2) is guilty of an offence. 2013, c. 3, s. 31.

▼ Section Amendments with date in force (d/m/y)

PART VI

ASSIGNMENT, SUBLETTING AND UNAUTHORIZED OCCUPANCY

Assignment of tenancy

95 (1) Subject to subsections (2), (3) and (6), and with the consent of the landlord, a tenant may assign a rental unit to another person. 2006, c. 17, s. 95 (1).

Landlord's options, general request

(2) If a tenant asks a landlord to consent to an assignment of a rental unit, the landlord may,

- (a) consent to the assignment of the rental unit; or
- (b) refuse consent to the assignment of the rental unit. 2006, c. 17, s. 95 (2).

Landlord's options, specific request

(3) If a tenant asks a landlord to consent to the assignment of the rental unit to a potential assignee, the landlord may,

- (a) consent to the assignment of the rental unit to the potential assignee;
- (b) refuse consent to the assignment of the rental unit to the potential assignee; or
- (c) refuse consent to the assignment of the rental unit. 2006, c. 17, s. 95 (3).

Refusal or non-response

(4) A tenant may give the landlord a notice of termination under section 96 within 30 days after the date a request is made if,

- (a) the tenant asks the landlord to consent to an assignment of the rental unit and the landlord refuses consent;
- (b) the tenant asks the landlord to consent to an assignment of the rental unit and the landlord does not respond within seven days after the request is made;
- (c) the tenant asks the landlord to consent to an assignment of the rental unit to a potential assignee and the landlord refuses consent to the assignment under clause (3) (c); or
- (d) the tenant asks the landlord to consent to an assignment of the rental unit to a potential assignee and the landlord does not respond within seven days after the request is made. 2006, c. 17, s. 95 (4).

Same

(5) A landlord shall not arbitrarily or unreasonably refuse consent to an assignment of a rental unit to a potential assignee under clause (3) (b). 2006, c. 17, s. 95 (5).

Same

(6) Subject to subsection (5), a landlord who has given consent to an assignment of a rental unit under clause (2) (a) may subsequently refuse consent to an assignment of the rental unit to a potential assignee under clause (3) (b). 2006, c. 17, s. 95 (6).

Charges

(7) A landlord may charge a tenant only for the landlord's reasonable out-of-pocket expenses incurred in giving consent to an assignment to a potential assignee. 2006, c. 17, s. 95 (7).

Consequences of assignment

(8) If a tenant has assigned a rental unit to another person, the tenancy agreement continues to apply on the same terms and conditions and,

(a) the assignee is liable to the landlord for any breach of the tenant's obligations and may enforce against the landlord any of the landlord's obligations under the tenancy agreement or this Act, if the breach or obligation relates to the period after the assignment, whether or not the breach or obligation also related to a period before the assignment;

(b) the former tenant is liable to the landlord for any breach of the tenant's obligations and may enforce against the landlord any of the landlord's obligations under the tenancy agreement or this Act, if the breach or obligation relates to the period before the assignment;

(c) if the former tenant has started a proceeding under this Act before the assignment and the benefits or obligations of the new tenant may be affected, the new tenant may join in or continue the proceeding. 2006, c. 17, s. 95 (8).

Application of section

(9) This section applies with respect to all tenants, regardless of whether their tenancies are periodic, fixed, contractual or statutory, but does not apply with respect